

6. STEPHENS v. LAUB LAW PLCC, ET AL., 25CV1050**(A) Defendant Rusin's Motion to Set Aside Default****(B) Defendants Joe Laub's and Law Firm of Laub & Laub's Motion to Set Aside Default****Defendant Rusin's Motion to Set Aside Default**

Default was entered against defendant Jill Rusin ("defendant") on December 16, 2025. On March 3, 2026, pursuant to Code of Civil Procedure section 473, defendant filed a motion to set aside default and default judgment. On March 04, 2026, defendant submitted a declaration in support of her motion.

On March 11, 2026, plaintiff submitted a timely opposition.

On April 09, 2026, defendant submitted a declaration of Ciu Ciu Tanner in support of her motion. Defendant submitted no reply brief.

1. Background

Proof of service filed November 10, 2025, shows plaintiff electronically served his third amended complaint ("TAC") on defendant on November 4, 2025, at the following email addresses: Jillyrusin@gmail.com and Jill@lawlaub.com. Although the summons and complaint must generally be personally served or served via substitute service (Code Civ. Proc., §§ 415.10, 415.20), the court notes that, on July 21, 2025, defendant electronically filed a motion to quash in this case and concurrently provided her email address (jill@lawlaub.com), thereby consenting to electronic service. (Cal. Rules of Ct., rule 2.251, subd. (b)(1)(B).) Accordingly, the deadline for defendant to file a responsive pleading to plaintiff's TAC was December 8, 2025 (30 calendar days, extended by two court days for electronic service). (Code Civ. Proc., §§ 412.20, subd. (a)(3), 1013, subd. (e).)

Defendant admits receiving a copy of the TAC via email on November 6, 2025: "On November 6, 2025, I received a copy of Plaintiff's Third Amended Complaint. This was

sent to Laub & Laub and to Joe Laub. Not to me. But I did receive an emailed copy of the copies directed to Mr. Laub and The Firm.” (Rusin Decl., ¶ 20.)

Defendant declares that, on December 4, 2025, she sent an email to plaintiff explaining that Laub & Laub had received two copies of the TAC, one for defendant Joey Laub and one for defendant Laub & Laub. (Rusin Decl., ¶ 21.) “Tired of dealing with service issues, [defendant] asked Plaintiff at that time to let [defendant] know if his intention was to also serve [defendant], and that [defendant] would respond to his Complaint.” (Rusin Decl., ¶ 21.) Defendant did not submit a copy of her email correspondence in support of the instant motion. However, plaintiff did submit a copy of an email from defendant (using the email address jill@lawlaub.com) to plaintiff (defendant also sent a copy of the email to herself at jillyrusin@gmail.com) dated December 4, 2025, which states: “Hello Mr. Stephens: This shall serve as an effort to meet and confer regarding demur [sic] to your amended complaint. Can you please provide a few dates/times convenient to your schedule? Sincerely, Jill Marchione Rusin.” (Stephens Decl., Ex. B.)

Defendant provides no explanation of why she did not file a responsive pleading before the December 8, 2025, deadline.

On December 9, 2025, the law firm’s receptionist added a document to their case file with the heading, “30 day extension to answer.” (Rusin Decl., ¶ 22.) Later, defendant realized that the extension did not apply to her but was for another defendant in this action. (Rusin Decl., ¶ 22.)

Defendant was away from the office on holiday vacation and was unaware of plaintiff’s December 29, 2025, email, which attached plaintiff’s request for default. (Rusin Decl., ¶ 23.) Defendant planned to return to the office on January 6, 2026. (Rusin Decl., ¶ 25.) Days later, her brother was hospitalized, which significantly limited defendant’s ability to work and communicate with her employer. (Rusin Decl., ¶¶ 25–26.)

When defendant discovered plaintiff's request for default in her email spam folder, she completed her answer to the complaint and contacted a trusted friend to file the document on her behalf as a favor. (Rusin Decl., ¶ 27.) Defendant requested the filing receipt from her friend but, uncharacteristically, did not hear back from the friend. (Rusin Decl., ¶ 29.) When defendant finally returned to work (defendant does not specify the date), she noticed a default prove-up hearing set for February 27, 2026. (Rusin Decl., ¶ 30.) Defendant attempted to reach her friend to obtain e-filing confirmation of the answer she filed. (Rusin Decl., ¶ 30.) After several days without a return call, defendant contacted another colleague, who informed defendant that the friend had abruptly left the county due to a death in her family. (Rusin Decl., ¶ 30.) Sometime between February 26 and February 27, 2026, defendant contacted the court and was informed that her answer had not been filed. (Rusin Decl., ¶ 31.)

2. Discussion

Code of Civil Procedure section 473, subdivision (b) provides: "The court may, upon any terms as may be just, relieve a party ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).)

Here, the court declines to grant defendant relief under the mistake provision of Code of Civil Procedure section 473, subdivision (b), because defendant provides no explanation of why she did not file a responsive pleading before the December 8, 2025, deadline. Defendant's claim of mistakes only occurred after the December 8, 2025, deadline. Plaintiff's evidence shows defendant sent plaintiff a meet and confer email on December 4, 2025, regarding defendant's intended demurrer.

Still, Code of Civil Procedure section 473, subdivision (a)(1) provides: "The court may, in furtherance of justice, and on any terms as may be proper, ...enlarge the time for answer or demurrer." (Code Civ. Proc., § 473, subd. (a)(1).) The court will grant defendant relief under this section because plaintiff's claims of negligence and breach of

fiduciary duty, as alleged against defendant Rusin in the TAC, both likely fail as a matter of law. The TAC alleges defendant is a paralegal for defendant Law Firm of Laub & Laub. Therefore, it would appear that defendant owed no legal duty of care to plaintiff and owed no fiduciary duty to plaintiff. The court finds it to be in the interest of justice that defendant's answer attached to her motion be deemed filed in this matter as of the date of notice of entry of order.

Defendants Joe Laub's and Law Firm of Laub & Laub's Motion to Set Aside Default

Default was entered against defendants Joe Laub and Law Firm of Laub & Laub (collectively, "defendants") on December 16, 2025. On March 4, 2026, pursuant to Code of Civil Procedure section 473, defendants filed a motion to set aside default, as well as a supporting declaration of defendant Joe Laub. Defendants also rely on defendant Jill Rusin's declaration, submitted March 4, 2026, in support of their motion.

On March 11, 2026, plaintiff filed a timely opposition. Defendants filed no reply.

1. Background

Proofs of service filed November 10, 2025, show that both defendants were personally served with plaintiff's third amended complaint ("TAC") on November 4, 2025. Therefore, defendants' deadline to file a responsive pleading was December 4, 2025.⁸ (Code Civ. Proc., § 412.20, subd. (a)(3).)

On or about December 4, 2025, defendant Joe Laub's office informed him of a 30-day extension to respond to the TAC, causing Mr. Laub to believe the new deadline for a responsive pleading was January 6, 2026. (Laub. Decl., ¶¶ 4, 5.) He later learned from his paralegal that this extension actually applied to a different defendant. (Laub. Decl., ¶ 4.)

⁸ Defendant Joe Laub's declaration in support of the instant motion states his office was served plaintiff's TAC by substitute service on November 4, 2025. (Laub Decl., ¶ 1.) Even assuming, *arguendo*, that defendants were served via substitute service, meaning the deadline to file a responsive pleading was December 15, 2025, neither defendant filed a responsive pleading before default was entered on December 16, 2025.

Mr. Laub was due to return to his office after a holiday vacation on January 6, 2026. (Laub Decl., ¶ 6.) On January 7, 2026, he was hospitalized after a serious ski accident. (Laub Decl., ¶ 7.) Mr. Laub's paralegal had a family emergency and his legal assistant was unable to return from her holiday vacation due to an emergency in her family. (Laub Decl., ¶ 9.) At some point in January 2026, Mr. Laub's paralegal informed him that the answers to plaintiffs' TAC had been filed. (Laub Decl., ¶ 10.) However, this turned out to be incorrect. (Laub Decl., ¶ 10.) Mr. Laub recently learned the answers had not been filed "due to yet another person's family emergency." (Laub Decl., ¶ 11.)

2. Discussion

Code of Civil Procedure section 473 provides, in pertinent part: "The court may, upon any terms as may be just, relieve a party ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Additionally, "the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment ... unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (*Ibid.*)

Here, defendant Joe Laub, a licensed California attorney, submitted a declaration indicating he mistakenly believed plaintiff had granted both defendants a 30-day extension to January 6, 2026. Then, due to a serious ski injury and a series of family emergencies sustained by members of his law firm's staff, Mr. Laub mistakenly believed that an answer to complaint had been filed, when in fact, that was incorrect.

Based on Mr. Laub's declaration, the court grants the motion to set aside default as to both defendants and deems the answer to the complaint attached to the motion as

being filed on the date of notice of entry of order. Mr. Laub is representing himself in pro per; thus, the court grants him permissive relief under Code of Civil Procedure section 473, subdivision (b). Defendant Law Firm of Laub & Laub is represented by Mr. Laub in his professional capacity; therefore, the court grants the law firm mandatory relief under Code of Civil Procedure section 473, subdivision (b).

TENTATIVE RULING # 6:

JILL RUSIN'S MOTION TO SET ASIDE DEFAULT: PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 473, SUBDIVISION (A)(1), THE MOTION TO SET ASIDE DEFAULT AGAINST DEFENDANT JILL RUSIN IS GRANTED. THE ANSWER TO COMPLAINT ATTACHED TO DEFENDANT'S MOTION IS DEEMED FILED AS OF THE DATE OF NOTICE OF ENTRY OF ORDER.

JOE LAUB'S AND LAW FIRM OF LAUB & LAUB'S MOTION TO SET ASIDE DEFAULT: PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 473, SUBDIVISION (B), THE MOTION TO SET ASIDE DEFAULT IS GRANTED AS TO BOTH DEFENDANTS, JOE LAUB AND LAW FIRM OF LAUB & LAUB. THE ANSWER TO COMPLAINT ATTACHED TO DEFENDANTS' MOTION IS DEEMED FILED AS OF THE DATE OF NOTICE OF ENTRY OF ORDER.

NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.